

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUCIA POSAS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, a municipal entity, POLICE OFFICER DENISTON WILLIAMS, ODANE JOHNSON, POLICE OFFICER "JANE DOE STRIP SEARCH", and POLICE OFFICERS "JOHN DOES 1-10" (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

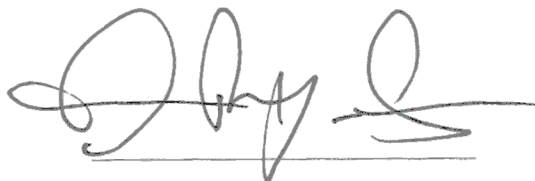
JURY TRIAL DEMANDED

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York

August 28, 2019



ELLIOT D. SHIELDS, ESQ.
ROTH & ROTH LLP
Attorneys for Plaintiff
192 Lexington Avenue, Suite 802

New York, New York 10016
(212) 425-1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER DENISTON WILLIAMS, Shield No. 07208, POLICE OFFICER
ODANE JOHNSON, Police Service Area 8 Precinct, 2794 Randall Ave, Bronx, NY
10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUCIA POSAS,

Plaintiffs,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, a municipal entity, POLICE OFFICER DENISTON WILLIAMS, ODANE JOHNSON, POLICE OFFICER "JANE DOE STRIP SEARCH", and POLICE OFFICERS "JOHN DOES 1-10" (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

JURY TRIAL DEMANDED

Defendants.

Plaintiff LUCIA POSAS, by her attorneys, ROTH & ROTH, LLP, complaining of the Defendants, respectfully allege as follows:

I. PRELIMINARY STATEMENT

1. Plaintiff LUCIA POSAS brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violation of his civil rights, as said rights are secured by said statutes, the Constitutions of the State of New York and the United States, and the common law of the State of New York.

2. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and the Constitution and common law of the State of New York.

3. On June 6, 2018, at approximately 5:30 a.m., Plaintiff, Lucia Posas, was unlawfully stopped, seized and arrested by New York Police Department ("NYPD") police

officers (“P.O.s”) from the PSA 8 precinct, including DENISTON WILLIAMS (“WILLIAMAS”) and ODANE JOHNSON (“JOHNSON”), while she was in the vicinity of the front of her apartment building, located at 2815 Schley Avenue, Bronx, New York. Ms. Posas was then transported to the PSA 8 precinct, where she was unlawfully strip searched. Despite Ms. Posas being stopped in the vicinity of the front of her apartment building, and no drugs, weapons, or contraband being found on her person or in her possession, custody or control, while at the precinct, WILLIAMS and JOHNSON transmitted false information to the Bronx District Attorney’s Office that claimed Ms. Posas was arrested inside of a second floor apartment and that she was allegedly found to be in possession of a large amount of illegal drugs—thereby initiating her malicious prosecution and depriving her of her constitutional right to a fair trial. The criminal prosecution terminated favorably approximately nine months after her arrest.

4. The grounds for this action arise out of the wrongful, unlawful, and improper acts of these defendants and their intentional violations of Ms. Posas’s rights as secured by the common law and the constitutions of the United States and the State of New York. Plaintiff Ms. Posas is entitled to damages for Defendants’ unconstitutional actions.

II. THE PARTIES

5. Plaintiff LUCIA POSAS is a resident of the County of Bronx, City and State of New York.

6. Defendant CITY OF NEW YORK (“CITY”) was and is a municipal entity created and authorized under the laws of the State of New York.

7. Defendant CITY maintains the New York Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law,

acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

8. At all times, Defendant POLICE OFFICER DENISTON WILLIAMS was a duly sworn police officer of the NYPD and was acting under the supervision of the NYPD and according to his official duties. Plaintiff asserts his claim against Defendant POLICE OFFICER DENISTON WILLIAMS in both his official and individual capacities.

9. At all times, Defendant POLICE OFFICER ODANE JOHNSON was a duly sworn police officer of the NYPD and was acting under the supervision of the NYPD and according to his official duties. Plaintiff asserts his claim against Defendant POLICE OFFICER M ODANE JOHNSON in both his official and individual capacities.

10. At all times, Defendant POLICE OFFICER "JANE DOE STRIP SEARCH" was a duly sworn police officer of the NYPD and was acting under the supervision of the NYPD and according to his official duties. Defendant POLICE OFFICER "JANE DOE STRIP SEARCH" is a female police officer who strip searched Plaintiff after her arrest at the PSA 8 precinct. Plaintiff asserts her claim against Defendant POLICE OFFICER "JANE DOE STRIP SEARCH" in both her official and individual capacities.

11. Defendants "John Does 1-10" were those officers who were part of the group of members of service of the NYPD that assisted in the detainment and arrest of Plaintiffs.

12. That at all times hereinafter mentioned, Defendant POLICE OFFICER DENISTON WILLIAMS, Defendant POLICE OFFICER ODANE JOHNSON, Defendant POLICE OFFICER "JANE DOE STRIP SEARCH", and Defendant POLICE OFFICERS "JOHN DOES 1-10" (Collectively, "Defendant POLICE OFFICERS," individually, "Defendant

POLICE OFFICER”), were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

13. At all times relevant herein, the Defendant POLICE OFFICERS either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

14. Each and all of the acts of the Defendant POLICE OFFICERS alleged herein were done by said defendants while acting within the course and scope of their duties and functions as agents, servants, employees and officers of the Defendant CITY.

15. Each and all of the acts of the Defendant POLICE OFFICERS alleged herein were done by said defendants while acting in furtherance of their employment by Defendant CITY.

III. CONDITIONS PRECEDENT

16. Plaintiff, in furtherance of her causes of action brought pursuant to New York State law, filed timely a Notice of Claim against the CITY, in compliance with the Municipal Law Section 50, and the Defendant CITY OF NEW YORK held a 50-h hearing on July 2, 2019.

17. More than thirty (30) days have elapsed since said Notice of Claim was filed and the CITY has failed to pay or adjust the claim.

18. This action is being brought within a year and 90 days of the event giving rise to Plaintiff’s State causes of action.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

IV. STATEMENT OF FACTS

21. On June 6, 2018, Plaintiff LUCIA POSAS was a 49-year-old single mother of three children who had never been arrested and was working full time as a school bus matron for children with developmental disabilities.

22. On June 6, 2018, Ms. Posas lived at 2815 Schley Avenue, Apartment 7A, Bronx, New York, with her three children.

23. On June 6, 2018, at approximately 5:30 a.m., Ms. Posas was lawfully in the vicinity of the front of her apartment building, 2815 Schley Avenue, Bronx, New York.

24. On June 6, 2018, at approximately 5:30 a.m., WILLIAMS and JOHNSON unlawfully stopped and seized Plaintiff in the vicinity of the front of her apartment building.

25. After they seized her in the vicinity of the front of her apartment building, WILLIAMS and JOHNSON accused her of possessing drugs and arrested her.

26. At no time did Ms. Posas ever possess any drugs, contraband or other illegal paraphernalia.

27. At no time did Ms. Posas have any drugs, guns or weapons in her possession, custody or control.

28. At no time did Ms. Posas commit a crime or violation.

29. Nevertheless, WILLIAMS and JOHNSON placed handcuffs upon Ms. Posas wrists and arrested her.

30. WILLIAMS and JOHNSON lacked reasonable or probable cause to believe that Ms. Posas had committed any crime or violation.

31. WILLIAMS and JOHNSON then transported Ms. Posas to the PSA 8 precinct.
32. The Defendant Police Officers did not have reasonable or probable cause to believe that Ms. Posas was concealing drugs, weapons or contraband underneath her clothing.
33. Nevertheless, when she arrived at the PSA 8 precinct, Defendant POLICE OFFICER "JANE DOE STRIP SEARCH" subjected Ms. Posas to an invasive and humiliating strip search.
34. As a result of the strip search, the Defendant Police Officers did not locate any drugs, weapons or contraband on Ms. Posas' person.
35. At no time did the Defendant Police Officers locate any drugs, weapons or contraband on Ms. Posas' person, or in her possession custody or control.
36. While she was at the PSA 8 precinct, several Defendant John Doe NYPD officers interrogated Ms. Posas and demanded she give them information about murders and other crimes in the area.
37. Ms. Posas informed the Defendants that she had no information about murders and other crimes in the area.
38. Thereafter, while Ms. Posas was detained at the PSA 8 Precinct, WILLIAMS and JOHNSON fabricated their account of their interaction with Ms. Posas in official police paperwork that falsely stated she had committed a crime and forwarded said paperwork to the Bronx District Attorney's Office.
39. Specifically, the paperwork falsely stated that WILLIAMS and JOHNSON arrested Ms. Posas inside of Apartment 2C at 2815 Schley Avenue, Bronx, New York, where she was alleged to be in possession of a large amount of marijuana, heroin and crack cocaine.

40. Ms. Posas was not present in Apartment 2C at 2815 Schley Avenue, Bronx, New York when she was stopped and arrested.

41. Ms. Posas was not present in Apartment 2C at 2815 Schley Avenue, Bronx, New York at any time on June 6, 2018 before she was stopped and arrested.

42. Ms. Posas did not reside in Apartment 2C at 2815 Schley Avenue, Bronx, New York at the time of her arrest.

43. Ms. Posas did not have actual or constructive possession of anything inside of Apartment 2C at 2815 Schley Avenue, Bronx, New York.

44. The Defendant Police Officers lacked reasonable or probable cause to believe that Ms. Posas had actual or constructive possession of any of the drugs allegedly found inside of Apartment 2C at 2815 Schley Avenue, Bronx, New York.

45. As a result of the Defendant Police Officers fabricating the Criminal Court Complaint and other official police paperwork by falsely claiming that Ms. Posas was arrested inside of Apartment 2C at 2815 Schley Avenue, Bronx, New York, and falsely claiming that she was found to be in possession of drugs in the apartment, she was deprived of liberty.

46. A criminal prosecution was initiated by the Defendant POLICE OFFICERS against Ms. Posas without probable cause and based upon their false communications to the District Attorney's Office, for violations of Penal Law Sections 220.18(1), 220.16(1), 220.16(12), 220.09(1), 220.03, 220.50(3), and 220.50(2).

47. Defendant WILLIAMS signed a Criminal Court Complaint that contained a fabricated account of the incident that led to Ms. Posas' arrest, which was filed in New York County Criminal Court and formed the basis for her prosecution for alleged violations of Penal Law Sections 220.18(1), 220.16(1), 220.16(12), 220.09(1), 220.03, 220.50(3), and 220.50(2).

48. After being detained at the PSA 8 precinct for approximately five hours, Ms. Posas was transported to Bronx Central Booking.

49. Ms. Posas was arraigned on June 7, 2018, and falsely charged with violations of Penal Law Sections 220.18(1), 220.16(1), 220.16(12), 220.09(1), 220.03, 220.50(3), and 220.50(2).

50. Ms. Posas' bail was set at \$50,000, which she was unable to post, and she was remanded to Riker's Island.

51. On or about June 19, 2018, Ms. Posas was indicted, upon information and belief, based on fabricated and false testimony and evidence provided by the Defendant Police Officers.

52. Thereafter, on or about June 26, 2018, Ms. Posas posted bail and was released from custody.

53. As a result of the Defendant POLICE OFFICERS' unlawful actions, Ms. Posas was detained in custody for a total of approximately 20 days.

54. Ms. Posas was prosecuted on the false charges for approximately nine months, during which time she was forced to appear in criminal court on numerous occasions.

55. On February 26, 2019, the criminal prosecution terminated favorably to Ms. Posas when the Bronx District Attorney's Office dismissed all charges against her.

56. The unlawful search, false arrest, false imprisonment, fabrication of evidence, and malicious prosecution of Plaintiff by the defendant NYPD officers caused Plaintiff to sustain physical, psychological and emotional trauma, loss of liberty, economic and other damages.

57. The unlawful search, false arrest, false imprisonment, fabrication of evidence, and malicious prosecution of Plaintiff by the defendant NYPD officers caused Plaintiff to be suspended without pay from her job for approximately ten months.

58. By the actions described above, each and all of the Defendant POLICE OFFICERS violated good and accepted police practices, and various sections of the NYPD Patrol Guide, including but not limited to sections 203-08, 212-75, and 208-15.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

59. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

60. All of the aforementioned acts of the Defendant CITY, and the Defendant POLICE OFFICERS and their agents, servants and employees ("Defendants"), were carried out under the color of state law.

61. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being subjected to false criminal charges by the police;
- d. To freedom from retaliatory prosecution;
- e. To be free from malicious prosecution;
- f. To the right to a fair trial;
- g. To freedom of speech and expression.

62. The aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Sixth and Fourteenth Amendments to the Constitution of the United States of America and 42 U.S.C. § 1983.

63. The acts complained of were carried out by the aforementioned Defendant POLICE OFFICERS in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

64. The acts complained of were carried out by the aforementioned Defendant POLICE OFFICERS in their capacities as police officers, pursuant to the customs, usages,

practices, procedures, and the rules of Defendant CITY and the NYPD, all under the supervision of ranking officers of said department.

65. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, economic harm, legal expenses and damages to her reputation and standing within her community.

66. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

67. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

68. One or more of the Defendant POLICE OFFICERS handcuffed and arrested plaintiff.

69. This arrest was made in the absence of a warrant for the arrest.

70. This arrest was made in the absence of probable cause for this arrest.

71. The Defendant POLICE OFFICERS arrested plaintiff without having exigent circumstances for doing so.

72. There was no other authority for the arrest of plaintiff.

73. The plaintiff was conscious of this arrest.

74. The plaintiff did not consent to this arrest.

75. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of her civil rights, emotional distress, anguish,

anxiety, fear, humiliation, loss of freedom, economic damages, legal expenses and damages to her reputation and standing within her community.

76. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CLAIM FOR RELIEF
FALSE ARREST UNDER NEW YORK STATE LAW

77. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

78. WILLIAMS and JOHNSON handcuffed and arrested Plaintiff.

79. As a result of the aforesaid conduct by the Defendant CITY and the Defendant POLICE OFFICERS, Plaintiff was unlawfully detained and confined.

80. The Defendant Police Officers—in performance of their duties with powers and authorities designated upon them by the Defendant CITY—intentionally confined Plaintiff.

81. Plaintiff was at all times consciously aware of her confinement by the Defendant Police Officers.

82. The arrest was made in the absence of a warrant for the arrest.

83. The arrest was made in the absence of probable cause for the arrest.

84. The Defendant Police Officers arrested Plaintiff without having exigent circumstances for doing so.

85. There was no other authority for the arrest of Plaintiff.

86. Plaintiff was conscious of the arrest.

87. Plaintiff did not consent to the arrest.

88. At no point throughout Plaintiff's unlawful detention and confinement by the Defendant Police Officers were the actions of the Defendant Police Officers otherwise privileged.

89. Defendant City is also liable to Plaintiff on the basis of *respondeat superior* as a result of the unlawful actions of the Defendant Police Officers as described herein.

90. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

91. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTH CLAIM FOR RELIEF
DENIAL OF THE RIGHT TO A FAIR TRIAL UNDER 42 U.S.C. § 1983

92. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

93. By deliberately manufacturing false evidence against Ms. Posas, including police reports and other arrest paperwork containing the defendants' own fabricated accounts that Ms. Posas was engaged in criminal activity, and forwarding that fabricated evidence to prosecutors, the Defendant POLICE OFFICERS caused plaintiff to be arrested, detained, charged, and prosecuted, in violation of her rights pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.

94. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, economic damages, legal expenses and damages to his reputation and standing within his community.

95. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FIFTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

96. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

97. The Defendant POLICE OFFICERS, acting individually and in concert, initiated the prosecution of Ms. Posas, despite knowing that probable cause did not exist to arrest and prosecute Ms. Posas for any crime.

98. False and fabricated evidence was given by the Defendant POLICE OFFICERS to the District Attorney's Office.

99. The Defendant POLICE OFFICERS knew or were deliberately and recklessly indifferent to the truth that probable cause did not exist to arrest and prosecute Ms. Posas.

100. There was actual malice and an absence of probable cause for the criminal proceeding against Ms. Posas and for each of the charges for which she was prosecuted.

101. On February 26, 2019, the prosecution terminated in Ms. Posas' favor.

102. As a direct and proximate result of the Defendant POLICE OFFICERS' actions, Ms. Posas was wrongly prosecuted for approximately nine months and suffered the other grievous and continuing injuries and damages as set forth above.

103. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SIXTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW

104. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

105. By the actions described above, each and all of the Defendant POLICE OFFICERS, jointly and severally, acting in concert with each other and with additional persons for whose acts they are liable, initiated, continued and/or caused the initiation or continuation of, criminal proceedings against Plaintiff.

106. By the actions described above, each and all of the Defendant POLICE OFFICERS violated good and accepted police practices, and various sections of the NYPD Patrol Guide, including but not limited to section 203-08.

107. On February 26, 2019, the prosecution terminated in Ms. Posas' favor.

108. There was no probable cause for the commencement or the continuation of the criminal proceedings.

109. The Defendant POLICE OFFICERS acted with actual malice.

110. The Defendant POLICE OFFICERS were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

111. The Defendant CITY, as the employer of the individual NYPD defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

112. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

113. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SEVENTH CLAIM FOR RELIEF
UNLAWFUL STRIP SEARCH

114. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

115. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the seizure and arrest.

116. The Defendant CITY, as the employer of the individual NYPD defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

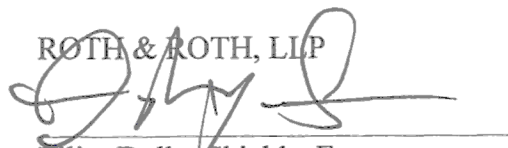
118. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff demands judgment against all the Defendants on each cause of action set forth above in an amount which exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action, together with the interest, costs and disbursements of this action, and attorney's fees and costs pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 28, 2019

Respectfully Submitted,

ROTH & ROTH, LLP



Elliot Dolby Shields, Esq.

Attorneys for Plaintiff

192 Lexington Avenue, Suite 802

New York, New York 10024

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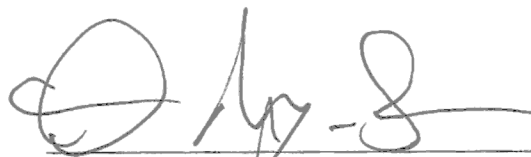
eshields@rothandrothlaw.com

ATTORNEY'S VERIFICATION

ELLIOT DOLBY SHIELDS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am associated with Roth & Roth, LLP, attorneys for the Plaintiff, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
August 28, 2019


ELLIOT DOLBY SHIELDS